

Note on undivided shares

1. Context of undivided share

Undivided shares refer to the ownership of a property by multiple individuals without physical division of the asset. Each co-owner holds a fractional interest in the entire property, but no specific portion is demarcated for exclusive use.

These undivided Shares are transferred **by Sale/Gift/ Release**: A co-owner can sell/ gift/ release their rights of an undivided share to another party.

2. Current implementation

Currently, Kaveri 2.0 enables citizens to transact entire properties, allowing for both full and partial extent transactions. However, transactions involving properties with undivided shares are not permitted.

The individual share of each owner is not available from the imported property XML from e-aasthi/e-swathu/ulms is not available.

3. Changes required

To facilitate such transactions, it is necessary to introduce new registration articles under the relevant main articles associated with property transfers. The inclusion of these new articles will enable citizens to transact properties that include undivided shares.

a. Sale

Registration Article	Sale of undivided rights
Stamp Article	Conveyance
Stamp sub-article	Sale of undivided rights

b. Gift

Registration Article	Gift of undivided rights
Stamp Article	Gift
Stamp sub-article	Gift of undivided rights

c. Release

Registration Article	Release of undivided rights
Stamp Article	Release
Stamp sub-article	Release of undivided rights

The following is a list of potential scenarios:

Owner	Extent	Scenario
Single	Full	Single owner selling full extent
Single	Part	Single owner selling part extent
Both	Part	Both owners selling part extent
Both	Full	Both owners selling full extent

Note: Please note that the fourth scenario—both owners selling their entire shares—is not feasible, as at least one original owner must remain following the transaction.

Following this, below validations given below must be incorporated -

1. **Selection of extent:** An allocation field will be given on the property description page to choose the undivided share which will be transacted.
2. **Extent Validation:** The area should be fetched, as the provision is made to share the area in percentage of ownership.

3. **Name validation:** The owner's name should be fetched and shouldn't be editable.
4. **Deletion of fetched parties:** The system should allow retaining a minimum of one concerned executant and should allow the deletion of all other executants.

Article Selection	Property Search	Property Schedule	Executant details	Party Allocation	Market Valuation	Fee Calculation	SRO selection and submission
	Executant Selection	Extent Declaration					
	Owners Deletion						

During application submission

1. **Article selection** - The user selects the appropriate article, such as Sale of undivided rights/ Gift of undivided rights/ Release of undivided rights.
2. **Property search** - Upon entering the property details, the system retrieves the list of associated properties and owner information.
 - a. Executant Selection - The user must select the owners/executants involved in the transaction of the undivided share property.
 - b. Owners Deletion – The user deletes the other owners who are not involved in the transaction of the undivided share property.
3. **Property Schedule** – The user continues with the schedule and boundary details of the property.
 - a. Executant declaration – the user must specify the ratio of the imported extent to be transacted.
4. Market valuation will be calculated based on the area which being transacted.
5. The user continues with the typical registration process.

During Mutation XML

For the mutation XML, the “seller” will contain all the executants who are not claimants, and the buyer block will contain all the claimants along with those executants who are selling part of the extent.

The table below shows the sample.

Sl. No.	Scenario	Owners	Executants	Total Area (Sq.Ft)	Declared Extent	Extent to sold %	Transacted extent(Sq.Ft)	Claimant	Parties as per Imported XML	Mutation XML seller	Mutation XML Buyer
1	One owner selling full extent	A B	A -	1200	50 0	100 0	600	C	A, B	A	B, C
2	One owner selling part extent	A B	A -	1200	50 0	40 0	240	C	A, B	A	A, B, C
3	Both owners selling part extent	A B	A B	1200	50 50	30 30	360	C	A, B	A, B	A, B, C
4	All the owners are selling full extent	A B C	A B C	1200	30 30 40	100 100 100	1200	D	A, B, C	A, B, C	D
5	One owner selling part extent	A B C	A - -	1200	99 0 0	100 0 0	1188	D	A, B, C	A, B, C	B, C, D
6	Two owner selling part extent	A B C	A B -	1200	40 30 0	50 50 0	420	D	A, B, C	A, B, C	A, B, C, D

5. Artefacts

i. Sample XMLs

Received XML

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  "ulbcode": "555",
  "ulbname": "ಬಿ.ಬಿ.ಎಂ.ಪಿ",
  "propertytype": "ಖಾಸಗಿ",
  "propertyid": "1344711777",
  "propertycode": "4342441",
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```

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Kaveri XML

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9

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BENGALURU URBAN, KARNATAKA - 560066</claimantaddress>

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  <claimantsex>F</claimantsex>

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East, BENGALURU URBAN, KARNATAKA - 560066</claimantaddress>

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